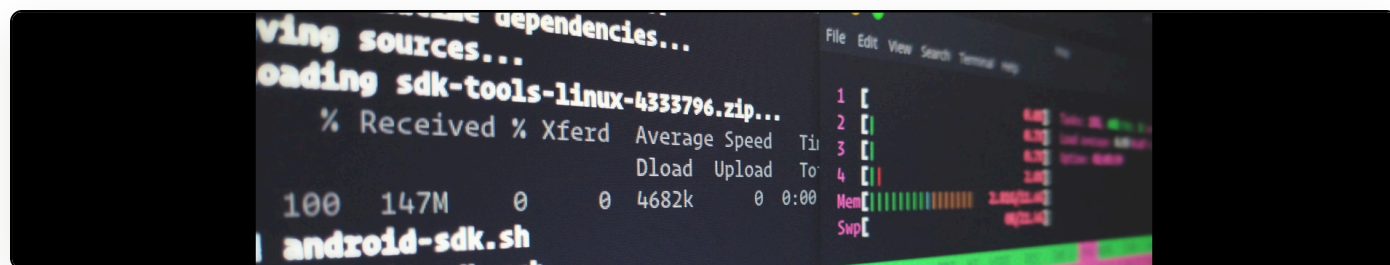


The 'net was never free from commercial interest; it's not a "new" threat to democratic speech

Cite as: Martin Paul Eve, "The 'net was never free from commercial interest; it's not a "new" threat to democratic speech", *eve.gd: Martin Paul Eve*, December 15, 2010, <https://doi.org/10.59348/ghx6t-j6413>.



In recent days, given the furore over Amazon's decision to no longer host Wikileaks, it has become common parlance to declare that the web is now subjected to the pressures that government can bring to bear on corporate entities (web hosting). See posts by both [Richard Hall](#) and [John Naughton](#).

I believe that, although this is the case, it is certainly nothing "new". Many Internet hosting companies have, for a long time, imposed draconian restrictions on hosting material related to computer ha-/cra- cking, arguing that it will only enable attackers to hone their skills. Of course, on the other side of the fence, InfoSec specialists point out that making this information public encourages developers to fix their holes. This is, in all honesty, exactly the same scenario as with Wikileaks.

Wikileaks shows us the cracks in our democracy. It shows us where the system breaks down behind a field of non-transparency. In this sense, it presents an attack on the system as it stands. On the other hand, it clearly demonstrates the ways in which our governments must be improved. Governments may not want this information in the hands of people who would use it to undermine their systems, but this should not be used an excuse not to fix their gaping problems.

Sadly, though, the problem is more pervasive than dedicated providers. The Internet hasn't truly been free since you needed to pay a phone bill to connect. In fact, how do you even account for the fact that you are online, using privatized cable, paying a service provider for that access? Internet access has long been entwined in a complex web of capital. Indeed, the moment that your online activities threaten your service provider's business model -- be this through incurring lawsuits from the recording industry, or, in the case of Wikileaks, reputation damage from anti-patriotic activities -- most of them will cave in and leave you high and dry. Only SSL encrypted, peer-to-peer with a trusted endpoint is truly free (in the sense of speech) on the Internet. Remember, it's only in the last year or so that Internet access has begun to be deemed a human right, and many are still sceptical even about this.

To return though, yes, Wikileaks is an important marker of free speech, but no, "cloud computing" (what we've called "servers" for a long time, although now provided in an on-demand business model) is not the problem, it is centralization.

As a closing remark, then, I'd like to remark that the problem with Wikileaks current model is that it is vulnerable to commercial organisations. A single point of presence can be cut off and targeted. A Spartacus model, under which material is so widely distributed that it becomes impossible to p(ro/er)secute everybody involved, would be a solution. However, this would require that the information was distributed before people knew its contents. If people were complicit in distributing material that they knew would offend governments/service providers, they would not have plausible deniability in the event of legal proceedings/cut offs. The solution to this is, obviously, the same as Wikileaks famed Insurance file. Distribute the material without the decryption key. Once the material is in place, give out the key. Of course, this has its own downsides. People would be unwilling to sit in on a peer-to-peer network without knowing what they are sharing for the same reasons that hardly anybody wants to run a TOR exit node: those involved in vile activities such as child pornography will also exploit the network and you could end up being a distributor. Conversely, how are we to proceed in a world that now seeks to retroactively criminalize, or financially punish, publication of leaks? Ex-post facto laws now seemingly demand a new means of resistance.

In other news, here's a real problem with "the cloud":

<http://blog.nixternal.com/2010.12.15/promise-me-you-wont-fail-like-this/>